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අති විශේෂ EXTRAORDINARY

අංක 1903/6 – 2015 පෙබරවාරි 24 වැනි අගනරුවාදා – 2015.02.24

No. 1903/6 – TUESDAY, FEBRUARY 24, 2015

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No. : CI / 1829.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement (in English Translation into Sinhala and Tamil) entered into between State Pharmaceuticals Corporation of Sri Lanka, No. 75, Sir Baron Jayathilaka Mawatha, Colombo 01 of the one part and The Sri Lanka Nidahas Sewaka Sangamaya, No. 75, Sir Baron Jayathilaka Mawatha, Colombo 01., State Pharmaceuticals Corporation Executive Officers' Association, 75, Sir Baron Jayathilaka Mawatha, Colombo 01, Jathika Sevaka Sangamaya, 75, Sir Baron Jayathilaka Mawatha, Colombo 01., Eksath Rajya Sewa Aushada Sanstha Sewaka Sangamaya, 75, Sir Baron Jayathilaka Mawatha, Colombo 01., Aushada Sanstha Sewaka Sangamaya, 158/18, E. D. Dabare Mawatha, Colombo 05., Rajya Oushada Neethigatha Sanstha Aushada Weedeenge Sangamaya, 43/1/1, Railway Avenue, Nugegoda of the other part on the 28th day of November, 2014 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

HERATH YAPA,
Commissioner of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
10th February, 2015.

Collective Agreement No. 41 of 2014

Collective Agreement 2014

Entered into Between

State Pharmaceuticals Corporation of Sri Lanka

Colombo 01

of the One Part

and

The Sri Lanka Nidahas Sewaka Sangamaya and Five Other

Unions Mention herein of the Other Part

THIS COLLECTIVE AGREEMENT is made on Twenty eighth day of November Two Thousand and Fourteen by and between the STATE PHARMACEUTICALS CORPORATION OF SRI LANKA (ESTABLISHED UNDER THE STATE INDUSTRIAL CORPORATIONS ACT, NO. 49 OF 1957 and Gazette Notification No. : 14,976/3 - Wednesday, September 22, 1971 and having its



head office at "No. 75, Sir Baron Jayathilaka Mawatha, Colombo 01, of the one part (hereinafter referred to as "the SPC") and the following unions :-

1. Sri Lanka Nidahas Sevaka Sangamaya
2. State Pharmaceuticals Corporation Executive Officers' Association
3. Jathika Sevaka Sangamaya
4. Eksath Rajya Sewa Aushada Sanstha Sewaka Sangamaya
5. Aushada Sanstha Sewaka Sangamaya
6. Rajya Aushada Neethigatha Sanstha Aushada Weedeenge Sangamaya

THIS COLLECTIVE AGREEMENT shall be known and referred to as the "STATE PHARMACEUTICALS CORPORATION OF SRI LANKA COLLECTIVE AGREEMENT 2014" WITH THE ALL SPC UNIONS MENTIONED HEREIN BEFORE.

1. **Employer to be Bound.** - State Pharmaceuticals Corporation of Sri Lanka.

2. **Employees to be Covered and Bound.** - This Collective Agreement shall cover and bind *inter alia* all permanent employees of STATE PHARMACEUTICALS CORPORATION OF SRI LANKA in the relevant categories of the Salary Scales contained in Annex 1 in this collective agreement.

3. **Date of Operation and Duration.** - This Agreement shall come into effect from First day of July 2014, and thereafter continue to be in force, unless it is repudiated by either party by giving six months notice in writing to the other party. However, it is agreed further that no party shall give such notice to the other party before expiry of 30 months from the date of this agreement, and such notice shall be effective after expiry of 36 months (i. e. 30/06/2017) from the date of this agreement.

4. Parties agree that they should commence discussions for renegotiations of the terms and conditions of this agreement or for formulation of new collective agreement before the expiry of this agreement.

5. **Matters Covered and Variation of Terms and Conditions of Employment and Benefits.** - It is agreed that this Collective Agreement shall be in full and final settlement of all matters covered herein as well as of all matters raised by representatives representing the membership of the said all unions in relation to the period of 36 month (3 years) from the date of this agreement, in respect of which negotiations have already taken place and matters have been agreed upon by all before the execution of this Agreement. Hence it is agreed that during the continuance of this Collective Agreement matters discussed, negotiated and agreed upon between the parties as reflect herein shall remain to be in force and that no Union of the SPC will during the period this Collective Agreement will resort to any trade union action such as work to rule, picketing, strikes and will also not to vary, alter or add any of the terms and conditions of employment or benefits applicable or enjoyed as provided for in this Agreement, other than in an event where an annual salary increment of 25 percent or over has been granted to the Corporation employees.

6. **Salary Components.** - As from the date of execution of this Collective Agreement, each employee covered and bound by this Agreement shall be paid upon and subject to the other terms and conditions herein contained a monthly salary which comprises the following components;

(i) As per Annex 01 attached to letter dated 19.11.2014 of Secretary to the Treasury.

(ii) Further ;

(a) Any advantage given to Corporation employees in terms of any Circular instruction issued by the Secretary to the Treasury, The Secretary, Public Administration (only the circular applicable to State Corporation and Statutory Boards), will continue to be applicable to the employees of the SPC, as may be relevant; and

(b) The Cost of Living Allowance (COLA) or related adjustments as may be announced in the annual Budget will also be extended to the employees of SPC, as may be relevant, in view of the fact that a separate COLA Adjustment did not form part of this Collective Agreement.

(c) The Travelling Allowance not relevant for the employees who are entitled to vehicle benefit including fuel Allowance approved by Government.

- (d) All other non salary benefits enjoyed by employees to be continued separately and will not change unless prior approval is granted by the Treasury.

7. **Taxes on Emoluments.**- For avoidance of doubt, it is acknowledged the PAYE tax on emoluments shall be continued to be borne by employees.

8. **Methodology of Converting Existing Salary to Proposed Salary.**- The Salaries of employees will be converted to the revised scale by applying the step for step (point by point) method of conversion. As per annexed salary scales.

Eg. An employee, who had been on the 05 th step of the scale as at the date immediately prior to the Effective date of this Agreement, will be placed on the 5th step of the relevant revised scale with effect from Effective date of this collective agreement.

9. **Conversion Anomalies.** -Parties jointly agree to execute this Agreement on the basis that any anomaly associated with the calculation of increments will be referred to a Committee comprising of one member from Ministry of Health, Treasury Representative, representatives of the SPC (3 members) and Presidents of the unions to which the respective employee is attached. Such committee shall be appointed within a month from the date of this Agreement and its recommendations shall be given within 3 months therefrom.

10. **Other Commitments.**- The Unions agree that the employees will take all endeavours to enhance the productivity of the operations of SPC through which a growth of 10% turnover excluding procurement orders placed by the Ministry of Health to be achieved by the SPC at the end of the year.

11. **Incidental Matters on to be Covered.**- The Parties hereby agree to all other matters incidental to this Agreement not dealt with herein shall be governed by applicable laws, regulations and Circular Instructions applicable. However the union retains the right to raise any issue which they consider as unreasonable to its members.

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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2015.02.24

PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 24.02.2015

For and on behalf of the State Pharmaceuticals Corporation of Sri Lanka





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I කොටස: (I) ඡේදය – ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය – 2015.02.24

PART I: SEC. (I) – GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA – 24.02.2015





PROPOSED SALARY SCALES

CATEGORY		SALARY SCALE				
PL 1	15000/-	150/- × 10	165/- × 10	185 × 7	200/- × 15	22445/-
PL 2	15600/-	165/- × 10	185/- × 10	200 × 10	215/- × 12	23680/-
PL 3	15930/-	165/- × 10	185/- × 10	200 × 10	215/- × 12	24010/-
MA 1.1	16900/-	185/- × 10	215/- × 7	300 × 4	405/- × 20	29555/-
MA 2.1	18370/-	185/- × 10	215/- × 7	300 × 4	405/- × 20	31025/-
JM 1.1	25800/-	460/- × 10	695/- × 18			42910/-
MM 1.1	32230/-	840/- × 3	925/- × 7	1165 × 15		58700/-
HM 1.1	48450/-	1385/- × 15				69225/-
MA 2.1	55360/-	1650/- × 12				75160/-